

		As such, the individual sought to be liable must have been “personally involved” in the alleged violations or have had “sufficient participation in the activities of the employer” such that the individual contributed to the alleged violations. (See <i>Usher v. White</i> (2021) 64 Cal.App.5th 883 [affirming grant of summary judgment where the undisputed facts showed the individual owner not participate in the decision of the business to classify plaintiffs as independent contractors, which classification was the basis of plaintiff’s claims].) Here, the Complaint alleges insufficient <i>facts</i> (as opposed to conclusory allegations) to support personal liability against Moving Defendants Garrett White and Danielle White. The Complaint merely identifies the two defendants in a couple of paragraphs (Compl., ¶¶ 1 and 10) and then requests relief against them (Compl., p. 15 [Prayer for Relief].) The paragraphs in the Complaint merely alleges in conclusory fashion that the individual defendants are and were at all relevant times, officers, owners, directors, and/or managing agents of Defendants and are personally liable for violations of Labor Code. (Compl., ¶ 10.) “Bare conclusions devoid of any supporting facts ... are insufficient to withstand demurrer.” (<i>Schmid v. City and County of San Francisco</i> (2021) 60 Cal.App.5th 470, 481.) As such, the court SUSTAINS Moving Defendants’ demurrer to the fifth and eighth causes of action, with 20 days leave to amend. Moving Defendants to give notice.
16	J-CM Services, Inc. vs. Duran	<u>Demurrer</u> The court SUSTAINS in part, and OVERRULES in part, the demurrer filed by Defendants ALL INCLUSIVE ENVIRONMENTAL SERVICES, INC. (“AIES”), RUBEN DURAN and CHRISTOPHER WERNICKE to the Complaint filed by Plaintiff J-CM SERVICES, INC. The court GRANTS 15 days leave to amend to address the deficiencies noted below.